

STATUTORY PROVISIONS (INDIA CODE OFFICIAL COMPILATION)

13. Divorce.—(1) Any marriage solemnized, whether before or after the commencement of this Act, may, on a petition presented by either the husband or the wife, be dissolved by a decree of divorce on the ground that the other party—
 (i) has, after the solemnization of the marriage, had voluntary sexual intercourse with any person other than his or her spouse; or
 (ia) has, after the solemnization of the marriage, treated the petitioner with cruelty; or
 (ib) has deserted the petitioner for a continuous period of not less than two years immediately preceding the presentation of the petition; or
 (ii) has ceased to be a Hindu by conversion to another religion; or
 (iii) has been incurably of unsound mind, or has been suffering continuously or intermittently from mental disorder of such a kind and to such an extent that the petitioner cannot reasonably be expected to live with the respondent;
 (2) A wife can also present a petition for the dissolution of her marriage by a decree of divorce on the ground—
 (iv) in the case of a marriage solemnized before the commencement of this Act—that she, who has had married again before such commencement, or that any other wife of the husband was lawfully wedded before such time as the grounds alleged have occurred, or during its continuance; or
 (v) if he has neglected to provide reasonable maintenance for her for a continuous period of one year or more immediately preceding the date of filing of the petition; or
 (vi) if he has since the solemnization of the marriage, agreed orally or in writing to absolute divorce.
(3) In the event of a decree being made under section 18 of the Hindu Adoptions and Maintenance Act, 1956, or in accordance with the provisions of sections 107 and 108 of the Code of Criminal Procedure, 1973 are deemed to have taken place against the husband awarding maintenance to the wife, and that since the passing of such decree or order prohibiting such proceedings between the parties, there has been no resumed cohabitation for one year upwards,
 (4) Wherein all arguments in the petition are true except those relating to the expenses of the proceeding, it may, on the application of the wife or the husband, order the respondent to pay to the petitioner the expenses of the proceeding, and monthly during the proceeding such sum as, having regard to the petitioner's own income and the income of the respondent, it may seem to the court to be reasonable.

25. Permanent alimony and maintenance.?(1) Any court exercising jurisdiction under this Act may, at the time of passing any decree or at any time subsequent thereto, on application made to it for the purpose by either the wife or the husband, as the case may be, order that the respondent shall pay to the applicant for her or his maintenance and support such gross sum or such monthly or periodical sum for a term not exceeding the life of the applicant as, having regard to the respondent's own income and other property, if any, the income and other property of the applicant, the conduct of the parties and other circumstances of the case, it may seem to the court to be just, and any such payment may be secured, if necessary, by a charge on the immovable property of the respondent.